

SOLAR ENERGY SYSTEM SUPPORTING INFORMATION

This document was developed through coordination of the California Contractors State License Board and the California Public Utilities Commission pursuant to Business and Professions Code section 7169, subdivision (c).

1. IMPORTANT INFORMATION FOR CONSUMER

Except for a limited down payment, it is against the law for a contractor to collect payment for work not yet completed, or for materials not yet delivered.

This is true whether the payment comes from you or your financing company/lender.

If there is a down payment, it cannot exceed the lesser of \$1,000 or 10 percent of the contract price.

If you are asked to make payment(s) before the project is completed, please be aware it is against the law for a contractor to collect payment for work not yet completed, or for materials not yet delivered.

Be careful about payments for “plans” or “permits” before the work starts. Call or go to your local permitting office’s website to confirm permit costs before paying them.

If you are asked to make payments and are not provided with a payment schedule or believe the contractor requested or accepted payment that exceeds the value of the work performed or material delivered, file a complaint with CSLB.

Unscrupulous salespeople may offer false incentives, rebates, or other offers to pressure you into signing a solar contract. Do your own research to make sure incentives, rebates, or other offers by a contractor are legitimate.

You have three days to review or cancel any agreement before you commit to it, or five days if you are over 65 unless this sale was negotiated at a contractor’s place of business. Review the following pages carefully.

2. INSTALLATION INFORMATION

Will subcontractors be used to perform this work? ☐ Yes ☐ No

If yes, the Contractor will provide me the name, license information, and contact information for all subcontractors before installation begins.

Information about warranty coverage is in the contract on page: 17

Make sure the system is permitted and inspected. Systems not installed to code can cause problems. Solar systems also may need maintenance; mechanical, electrical, software, and internet problems can occur. Information about the service and maintenance of the system is in the contract on page: 17

3. INFORMATION ABOUT THE AGREEMENT

PPAs/Leases:

Is this a power purchase agreement (PPA)/Lease? ☒ Yes ☐ No.

Customer will not own system. For PPAs, customer will pay for the power the system uses. For leases, customers will pay to use the system)

Name of financing company: Participate Holdings, LLC

Term of PPA/Lease: PV: 25 / Battery: 10 years _____ months

Can the customer transfer the system to a new homeowner if they want to sell their house? ☒ Yes ☐ No. This may require the customer to pay off the agreement in full. See page(s) 9 (Section 11) of the contract for more information.

Financing:

Is this a purchase? (Customer will own system) ☐ Yes ☒ No.

Is the contractor facilitating a solar loan for the customer?* ☐ Yes ☒ No.

If PACE financing is used, the customer will receive a separate disclosure document.

Name of financing company: N/A

Term of loan: N/A years N/A months

*You are not purchasing the System; however, you may be choosing to finance the Net Amount Due. Installer is not legally affiliated with any lender and does not arrange or broker loans. If you choose to finance the Net Amount Due, carefully read any agreements and disclosure forms provided by your lender. If you have any questions about your financing agreement, contact your lender before signing a contract.

Complete One:

1. CASH/LOAN:

Total cost for the solar energy system or purchase, including installation fees, document preparation fees, service fees or other fees before subtracting possible rebates or tax credits.

NOTE: You may or may not be eligible for federal tax credits or state/federal incentives. See www.cpuc.ca.gov/solarguide or consult your tax or legal professional for further information.

Monthly payment (loans only):

Interest rate (loans only):

\$ N/A

\$ N/A

N/A %

2. LEASE:

Total Cost:

Monthly payment:

Prepayment amount:

Escalator*:

\$ _____

N/A

\$ _____

N/A % per year

3. PPA:

Energy rate for power purchase agreement:

Escalator*:

Upfront payment, if applicable

N/A \$/kWh

N/A % per year

\$ N/A

Monthly payments, if applicable	\$ <u>N/A</u>
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Go to www.cpuc.ca.gov/solarguide for more information on each of these fees.

* An escalator is a price increase over time. Ask your provider to explain how much your bills are expected to increase every year due to an escalator, and why they are including an escalator.

4. ENERGY SAVINGS

When designing your solar or solar + storage system, companies will give you an estimate of how much you will save on your electricity bill. This section shows this estimated bill savings. The estimate can be used as a guide, but is not a guarantee of future savings, which will depend on many factors. Go to www.cpuc.ca.gov/solarguide to learn more about protecting yourself from misleading claims and other useful things to know before you sign a contract.

Inputs and Assumptions*

My Annual Electricity Usage (*past 12 months***)

Estimated Annual Solar Electricity Generation (estimation of *what my system will generate*) ***

Battery Capacity

Battery Minimum State of Charge

Before: Electricity provider’s rate schedule you are on now

After: Electricity provider’s eligible rate schedule after installation

		kWh
		kWh
		kWh
		%
Before	After	

****If 12 months of data not available, explain why and how usage was determined here:**

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Your contractor must provide one of the two required estimates that follow, based on whether your planned system will have a battery or not.

1. Estimated Bill Savings for Systems with Solar and Battery Storage:

Required Estimate: Battery optimized for maximizing bill savings (battery is programmed to optimize bill savings by serving onsite load or exporting to the grid based on price signals)

<u>Required Calculation</u>	Total Estimated Savings in First Year \$
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Optional Estimate: Battery programmed to prioritize self-consumption (battery prioritizes offsetting electricity use over discharging to the grid)

<u>Optional Calculation</u>	Total Estimated Savings in First Year \$
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Optional Estimate: Battery programmed for home back-up (prioritize keeping battery charged in case of outages)

<u>Optional Calculation</u>	Total Estimated Savings in First Year \$
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Name of Calculator Used:

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2. Estimated Bill Savings for Systems with Solar Only (no battery):

Required calculation***	Total Estimated Savings in First Year
	\$

Name of Calculator Used:

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**Explanation and criteria for the standardized inputs and assumptions are available here:*

<https://docs.cpuc.ca.gov/PublishedDocs/Published/G000/M344/K976/344976563.PDF>. Beginning in late 2025 and 2026, rates charged to all customers (meaning customers without rooftop solar and with rooftop solar) will include a base services charge to fairly recover costs from all customers for electric grid infrastructure and other shared costs. Please see https://www.cpuc.ca.gov/-/media/cpuc-website/divisions/energy-division/documents/demand-response/demand-flexibility-oir/ab205_factsheet_050824.pdf for more information. Calculations are to be made with assumption of no rate escalation. Go to www.cpuc.ca.gov/solarguide for the current average annual escalation rate of electricity costs.

****Estimates of the solar-only portion of installations must use calculations based on PVWatts (available at <https://pvwatts.nrel.gov/>) to calculate annual solar electricity generation, pursuant to Resolution E-5364.*

Non-sensitive information contained in this document may be disclosed publicly for industry transparency and evaluation purposes. No personally identifiable data will be published and any information disclosed will be done in accordance with applicable privacy law and policies.

SOLAR ENERGY SYSTEM DISCLOSURE DOCUMENT

(California Business & Professions Code § 7169)

TOTAL COST FOR THE SOLAR ENERGY SYSTEM: \$_____ (This is the “Net Amount Due” as defined in your Agreement. This amount includes the cost of the system, installation, and permit fees, less any applicable discounts or assigned incentives.)

PAYMENT SCHEDULE: This is a Prepaid Lease. You will make progress payments totaling the Net Amount Due during the installation phase.

Monthly Lease Payments: \$0.00 (After the initial “Net Amount Due” is paid).

Due Date of First Payment: Upon execution of the Agreement (Subject to statutory limits).

CONTRACTOR INFORMATION:

Name: Cosmic Solar & Roofing
Address: 943 Poinsettia Ave., Ste 401, Vista CA 92081
License Number: 831831
Email: solarroof@cosmicsolar.com

RIGHT TO CANCEL: You have the right to cancel this contract within three (3) business days after signing it. If you are 65 years of age or older, you have five (5) business days to cancel. See the attached “Notice of Right to Cancel” for details.

CSLB CONTACT INFORMATION: You may contact the Contractors State License Board (CSLB) at 1-800-321-CSLB (2752) or www.cslb.ca.gov to verify the contractor's license and check for any disciplinary actions.



CUSTOMER AGREEMENT

Disclosure Statement

This disclosure statement is designed to help you understand the terms and costs related to the System (as defined below). This disclosure statement is not a substitute for reading the contract and other documents associated with this transaction. Read your Agreement and other documents carefully. All information presented below is subject to the terms of your Agreement.

System Owner: Participate Holdings, LLC	Installer: Cosmic Solar & Roofing	Customer:
	Contractor License #: 831831	
Address: 2093 Philadelphia Pike #3125, Claymont, DE 19703	Address:* 943 Poinsettia Ave, Ste 401, Vista CA 92081	System Installation Address:
Tel: 1-888-8-HAPPY-8	Tel.: (760)749-1111	Tel.:
Email: notices@participate.energy	Email: solarroof@cosmicsolar.com	Customer Email:
	*Notice of Cancellation may be sent to Installer's address above.	Customer Mailing Address:
		Effective Date:

***NOTE: YOU ARE ENTERING INTO AN AGREEMENT TO LEASE THE SYSTEM. YOU WILL NOT OWN THE SYSTEM INSTALLED ON YOUR PROPERTY UNTIL AND UNLESS YOU ELECT TO ACQUIRE THE SYSTEM IN THE FUTURE.**

Baseline Lease Amount	Amount \$
minus	
Value of Included Incentives (if available) (Included Incentives are received by System Owner and provide additional discounts to the Net Amount Due by Customer)	
Upfront Discount for State incentives:	\$
Upfront Discount for utility incentives:	\$
equals	
Net Amount Due (Total payments you owe System Owner)	\$
	Amount
Replacement Cost of System	\$

FEDERAL CONSUMER LEASING ACT DISCLOSURES

Effective Date: _____ Lessee Name(s): _____
Lessor Name: Participate Holdings, LLC

Description of Leased Property	
Location of Equipment:	Leased Equipment: Your Installer will install solar panels, inverter(s), racking, cabling and other components comprising the System, and/or an energy storage device. System Owner will lease this System to you.*
Amount Due at Lease Signing: \$	*System specifications and design are included in your Installation Order.
Other Charges (not part of your Net Amount Due): None.	Total Cost of Lease (the amount you will have paid by the end of the Lease): \$

Estimated Schedule of Payments	Payment	Amount	Due Date
	1	\$	Your payments are due according to the Schedule of Progress Payments in <u>Exhibit A</u> of the Lease.
	2	\$	

Other Important Terms:	You are responsible for property taxes on the property you own. You do not own the System under this Agreement. Consult a tax professional to understand any tax liability that may result from entering the Agreement.
Insurance & Maintenance:	We provide 24/7 monitoring at no additional cost to you. System repair, warranty support, and maintenance are the responsibility of the System Owner; however, the System Owner, Installer, or you may be responsible for other costs as outlined in the terms of your Agreement. Subject to the terms and conditions of your Agreement, System Owner will be responsible for repairing or replacing the System or System components to restore the good working condition of the System during the term of this Agreement.
Default:	See <u>Section 14</u> for information regarding Customer Default.
Security Interest:	Participate owns the System. While System Owner will not place a lien on your property; however, either System Owner or its assignee may file a Notice of Ownership of System in the real property records.
Early Purchase Option:	At certain times, as specified in your Agreement, you may purchase the System, subject to terms and conditions. The price will be fair market value minus any offsetting obligations owed by System Owner at a number no less than \$0.00. See <u>Section 10</u> .
Transferability:	If you sell your real estate property, you MAY transfer this Agreement to the purchaser(s) of your Property. If you transfer the Agreement, you must complete the transfer notification prior to the transfer of title of your real estate property. You will be responsible for this Agreement until such time that the new real estate property owner and you complete the transfer notice. You may initiate the transfer notice at https://transfer.participate.energy or by emailing transfer@participate.energy . See <u>Section 11</u> .
End of Lease Term:	At the end of the term, you may (1) renew the Agreement for additional one-year terms at the then-current fair rental rate; (2) purchase the System in accordance with <u>Section 10</u> ; (3) or terminate this Agreement at no cost to you.

Customer(s) Initials:		BY INITIALING, YOU ACKNOWLEDGE RECEIPT OF THESE LEASE DISCLOSURES, AS OF THE EFFECTIVE DATE.
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Other Key Terms

Lease Term	
PV System	Battery
25 Years ☐	10 Years ☐

Other Incentives Paid Directly to You:

If available, other incentives paid directly to you will be outlined in **Exhibit C** at the end of this Agreement (“**Additional Incentives**”).

Recommendations:

Although not required, nor included by System Owner without additional fees, it is suggested that you perform the following to ensure maximum solar production (if solar is included in the System):

- Shade Management: Shading on your solar display dramatically reduces electricity production. Keep trees or other tall plants trimmed to prevent shade on the System.
- Panel Cleaning: Cleaning your panels of debris can improve the System’s performance.

Utility and Electricity Usage/Savings Assumptions:

You HAVE been provided with a sales proposal by your Installer to help you understand the potential benefits of entering this Agreement. System Owner is not responsible for representations made outside of this Agreement. Utility rates and utility rate structures are subject to change. These changes cannot be accurately predicted. Projected savings from your distributed energy generation system are therefore subject to change. Tax incentives are subject to change or termination by executive, legislative, or regulatory action. Increases or decreases to your home loads will also impact your potential and future system performance. System Owner IS NOT guaranteeing these savings, which may be higher or lower than estimated in the proposal prepared by your Installer.

Customer(s) Initials: _____

Tax Credits:

Any state or federal tax credits generated by the System WILL NOT be owned by you but WILL be owned by System Owner.

Renewable Energy Certificates (RECs) and Other Incentives:

Any assignable or transferable renewable energy certificates or credits (RECs) from producing renewable solar energy with the System WILL NOT be owned by you and WILL be owned by System Owner unless otherwise included in **Exhibit C** (“**Additional Incentives**”).

CUSTOMER AGREEMENT

1. INTRODUCTION.

This CUSTOMER AGREEMENT (this “**Agreement**”) is effective as of the date indicated in the signature page hereunder (the “**Effective Date**”) between you and Participate Holdings, LLC (the “**System Owner**”) (together with its successors and assigns, or altogether, “we,” “us,” or “our”), relating to (a) the installation of a solar photovoltaic system (“**PV System**”) and/or an energy storage system (“**Battery**”) at your property (each individually and collectively, the “**System**”), and (b) your lease of the System for the term of the Agreement. The System has been or will be installed by the licensed third-party contractor named in the Installation Order (the “**Installer**”), at the property located at the installation address listed above (the “**Property**”).

2. TERM AND END-OF-TERM OPTIONS.

2.1 Initial Term. This Agreement is effective as of the Effective Date, but the term of the lease under this Agreement shall begin on the System Installation Date (as defined below) and end on the date that is (i) ten (10) years thereafter for Batteries (“**Battery Term**”), and (ii) twenty-five (25) years thereafter for PV Systems (“**PV Term**”), as applicable. Your Installer will work with your electric utility to activate and turn on the System (the “**System Installation Date**”) and cause it to generate electricity measured in kilowatt hours (“**Electricity**”).

2.2 Systems that Include PV System and Battery. Unless otherwise agreed in writing between you and System Owner, for a System that includes both a Battery and a PV System, upon the termination of the 10-year term for the Battery, System Owner may remove such Battery at any time. For any period after the end of the 10-year term for the Battery, notwithstanding the general provisions of Section 5.2, any Grid Services revenue generated by the discharge of power from the Battery shall be retained by (or payable to, if credited by a utility directly to you) System Owner. In such case, you will not have any rights to receive power from the Battery.

2.3 End-of-Term Options. Prior to the end of the PV Term, and provided there is no ongoing Customer Default, you will have the following options which you may choose at the end of the PV Term: (1) you may renew the Agreement for additional one-year terms at the then-current fair rental rate; (2) you may purchase the System in accordance with Section 10; (3) or you may terminate this Agreement, then we will remove the System pursuant to Section 15.

3. LEASE AMOUNT.

3.1 Lease Amount. During the Term, you agree to lease the System pursuant to this Agreement. The lease payment owed by you prior to any additional discounts is \$_____ (“**Baseline Lease Amount**”). The Baseline Lease Amount will be further reduced by \$_____ for incentives received by System Owner (“**Included Incentives**”). To the extent you have selected additional products and services beyond the standard benefits and obligations related the System, the Baseline Lease Amount shall be adjusted accordingly and will be included in the payment amounts set forth in Exhibit A. As

a result, the total amount owed by you to the System Owner is \$_____ (“**Net Amount Due**”). Customer shall remit the Net Amount Due directly to the Installer, on System Owner’s behalf.

3.2 Additional Incentives. If additional incentives paid directly to you are provided in this Agreement, they will be included in **Exhibit C** (“**Additional Incentives**”). Any governing pricing, qualifying criteria, terms, and special conditions of the Additional Incentives are included in the enclosed **Exhibit C**. Notwithstanding anything herein, if the economic benefit of any Additional Incentive is not received by System Owner, then there is no additional discount to your Baseline Lease Payment to System Owner.

3.3 Lease Amount Payments. Your payment obligations must be made in accordance with **Exhibit A** (Payment Schedule & Terms) of this Agreement.

3.4 No Guaranteed Production. WE DO NOT WARRANT OR GUARANTEE THE AMOUNT OF ENERGY PRODUCED OR STORED BY THE SYSTEM FOR ANY PERIOD, OR THAT YOU WILL REALIZE ANY SAVINGS AS COMPARED TO THE COSTS OF PURCHASING EQUIVALENT POWER FROM YOUR LOCAL UTILITY.

4. SYSTEM INSTALLATION AND CONSTRUCTION RESPONSIBILITY.

4.1 Licensed Work Performance. We contract with a third-party, state-licensed installer to perform all required construction, installation, electrical, and roofing work (collectively, the “**Licensed Work**”) necessary to make the System operational on your Property.

4.2 System Owner's Role and Non-Supervision. The Installer is solely and exclusively responsible for all means, methods, techniques, sequencing, and procedures of construction and installation. System Owner is not licensed to perform the Licensed Work and holds no right to control, direct, or supervise the day-to-day work, employees, or subcontractors of the Installer.

4.3 Customer Recourse for Construction Defects. You acknowledge and agree that all claims, damages, or disputes relating to the quality of the workmanship, construction defects, or damage to the Customer’s Property caused by the physical installation of the System must be directed to the Installer under the terms of the Installation Order.

4.4 Substitution of Installer. Customer acknowledges that System Owner has engaged Installer to construct the System. In the event Installer fails to perform, becomes insolvent, or ceases to be an authorized partner of System Owner, Customer hereby consents to System Owner’s appointment of a substitute contractor (“**Replacement Installer**”) to complete the design, installation, and commissioning of the System. Customer agrees to cooperate reasonably with the Replacement Installer and acknowledges that the engagement of a Replacement Installer shall not constitute a default by System Owner under this Customer Agreement, provided that the System remains substantially in accordance with the specifications set forth herein.

5. ENERGY STORAGE; GRID SERVICES (APPLICABLE IF BATTERY SYSTEM IS INCLUDED).

5.1 Energy Storage; Grid Outages. During the Battery Term, System Owner will operate and maintain the Battery and discharge Electricity from the System to offset your electricity usage. We will determine the times and rates of charging and discharging in our sole discretion; provided that you may adjust System settings related to your personal preferences on the customer-facing software application at your discretion as long as they do not conflict with any Grid Service (as defined below) obligations of the System outlined in Section 5.2. If configured to do so, you may use the System to provide backup power to your Property in the event of a grid outage. If your lease does not include a Battery or you elected to include a Battery without backup capabilities, you will not have backup power during grid outages.

Customer(s) Initials: _____

5.2 Grid Services. You agree System Owner may automatically and without additional consent, enroll System Owner's System in any grid service, virtual power plant, demand response program, or any other use that generates revenue or other benefits from a third party (unrelated to this Agreement) for dispatching or operating the System ("**Grid Service(s)**"), and You agree to execute documents and reasonably cooperate with System Owner with respect to such enrollment. We may assign Grid Service rights to third parties, including your utility, in connection with executing on Grid Services. As consideration for (a) the System Owner participating in Grid Service opportunities partially or fully developed by System Owner, and (b) utilizing the System hosted at your home, you will receive 30% of all net proceeds from such Grid Services and System Owner shall retain and will be entitled to the remainder. If System Owner participates in Grid Service opportunities not partially or fully developed by System Owner, your consideration shall increase and you will receive 70% of all net proceeds and System Owner shall retain and will be entitled to the remainder. Notwithstanding the foregoing, upon the expiration of the Battery Term (as defined in the Agreement), if the Battery has not been replaced or purchased by you, System Owner shall thereafter be entitled to retain 100% of all net proceeds from Grid Services. System Owner shall be entitled to determine, at its sole discretion, if the Grid Service opportunity was partially or fully developed by System Owner. In all cases, to protect you, System Owner will ensure that your overall electricity costs, including any Grid Service payments made to you, shall not increase as a result of the enrollment of the System Owner's System in Grid Services. You may not enroll the System into any other Grid Services without System Owner's prior written consent. If you participate in Grid Services without System Owner's consent, 100% of the Grid Service proceeds shall be paid to the System Owner. All existing System settings and controls will be temporarily paused during the execution of Grid Services and un-paused once complete.

Customer(s) Initials: _____

5.3 Metering. You agree to permit us to conduct temporary shutdowns of the main electrical service in order to install the necessary metering to provide the Grid Services. If such a shutdown is not permissible, then you agree to work with us in good faith to provide

real-time access to load data through an existing energy management system or other means.

5.4 Limitations of Use. THE SYSTEM, EVEN WITH A BATTERY INCLUDED, IS NOT INTENDED FOR USE AS PRIMARY OR BACK-UP POWER SOURCE FOR CRITICAL CARE INCLUDING LIFE-SUPPORT, OTHER MEDICAL EQUIPMENT, OR ANY OTHER USE WHERE PRODUCT FAILURE COULD LEAD TO INJURY TO PERSONS OR LOSS OF LIFE OR CATASTROPHIC DAMAGE. SYSTEM OWNER DISCLAIMS ANY AND ALL LIABILITY ARISING OUT OF YOUR USE OF THE SYSTEM FOR THESE PURPOSES AND DISCLAIMS ANY AND ALL LIABILITY ARISING OUT OF SYSTEM OWNER'S OR INSTALLER'S SERVICE OR REFUSAL TO SERVICE THE SYSTEM IN SUCH CIRCUMSTANCES.

6. YOUR OBLIGATIONS.

6.1 **System and Property Maintenance.** You agree to:

- (i) comply with any financing obligations or terms and conditions imposed by any lender or capital partner lending capital to Customer related to the System;
- (ii) only have the System repaired pursuant to the Limited Warranties (described in **Exhibit B**) and reasonably cooperate when repairs are being made;
- (iii) keep trees, bushes, and hedges trimmed so that the System receives as much sunlight as it did when the Installer installed it;
- (iv) (a) include the System on your Property's casualty insurance policy for the total cost to replace the System which is \$_____ ("**Replacement Cost of System**"), (b) name System Owner as loss payee, (c) continue to maintain this coverage as stated above throughout the Term of this Agreement, (d) provide proof of such upon request by System Owner, and (e) cooperate with System Owner and insurance provider to pursue any potential claims that may arise;

Customer(s) Initials: _____

- (v) be financially responsible for the System against all damage or loss if (a) that damage or loss is caused by your negligence (b) you intentionally damage the System (upon damage to or destruction of the System); or (c) if you do not include the System on your casualty insurance policy and as a result, there are no insurance proceeds available to repair or replace the System after it has been damaged or destroyed. In cases where we bear the risk of loss, our sole obligation to you will be to repair or replace the System to the extent required by the Limited Warranties described in **Exhibit B**;
- (vi) not modify your Property in a way that interferes or impairs the System operation or performance;
- (vii) be responsible for any conditions at your Property that affect the installation (e.g., blocking access to the roof or removing any tree or vegetation that is in the way prior work you have done on your Property that was not permitted);
- (viii) not remove any markings or identification tags on the System;

- (ix) as set forth in Section 6.6, permit System Owner or its designees, after giving you reasonable notice, to inspect the System for proper operation as we reasonably determine necessary;
- (x) use the System primarily for personal, family, or household purposes but not to heat a swimming pool;
- (xi) not do anything, permit, or allow to exist any condition or circumstance that would cause the System not to operate as intended at the Property;
- (xii) notify System Owner (a) if you think the System is damaged or appears unsafe, (b) if any part of the System is stolen, and/or (c) prior to changing your power supplier;
- (xiii) sign this Agreement by those required and with the authority to bind your Property;
- (xiv) return any documents we send you for signature (like incentive claim forms) within seven (7) days of receiving them; and
- (xv) maintain and make available, at your cost, a functioning wired or wireless internet connection with capability to connect to and reliably provide internet service to the System where the wireless access point or wired ethernet port is within eighty (80) feet of the System's AC/DC inverter(s).

6.2 Property Renovations or Repairs. If you need to repair your roof or other parts of your Property, or any person requires any change to the System, you may only have the System removed and replaced by a vendor approved in writing by the System Owner. The cost of removal and re-installation will be your sole financial responsibility. You may be required to safely store the System after it is removed. The rights and obligations to temporarily remove, store, and reinstall the System under this Section 6.2 solely relate to a temporary circumstance where you need to repair your roof or other parts of your Property.

6.3 Taxes on Payments; Late Charges and Default Remedies; Capital Providers.

6.3.1 Transaction Taxes. The payments specified in Exhibit A do not include applicable sales, use, or transaction taxes. You are responsible for paying these taxes. If these taxes are assessed on your payments, you must pay them in addition to the amounts listed in Exhibit A.

6.3.2 Late Charges. For this Agreement and any payments to be made pursuant to the Installation Order, in addition to any other amounts you agree to pay, late payments shall accrue interest at the lesser of twelve percent (12%) annually or the maximum allowable percentage by applicable law.

6.3.3 Capital Providers. For agreements with third-party lenders or capital providers to you ("**Capital Provider**") (a) related to providing you with resources, financing or capital to pay over time for the lease amounts due under this Agreement, and (b) where System Owner has approved a lien to be filed with respect to the System for the benefit of said Capital Provider (e.g. UCC-1), you acknowledge and consent that System

Owner shall be entitled to disable the System at any time on or after any balance owed to the Capital Provider is past due and remains unpaid for more than 60 days. Once your account with the Capital Provider is no longer past due, System Owner will reactivate the System. After the fifth (5th) anniversary of the System being placed in service for federal U.S. income tax purposes and if your account with the Capital Provider remains unpaid, the Capital Provider may repossess the System in accordance with the agreements that you entered into with the Capital Provider, in such case, System Owner retains all remedies permitted by equity and law.

Capital Partner Engagement

A Capital Provider ☐ IS ☐ IS NOT issuing a loan to Customer related to this Customer Agreement.

Customer(s) Initials: _____

6.4 Property Taxes. You are responsible for all taxes related to your home and land (“**Real Property**”). You are not responsible for any personal property taxes assessed on the System; *provided, however,* you are responsible for any real property taxes associated with the Property. It is your responsibility to verify that the System is not included as part of any real property tax assessment specific to your Property. We will pay the initial personal property taxes assessed on the System; however, you agree to reimburse us for these taxes if we invoice you for them. The price of this Agreement is based on tax laws effective today. If a government authority creates a new tax or increases existing taxes related to the System in the future, you agree to pay those additional amounts.

6.5 No Alterations. You agree that you will not make any modifications, improvements, revisions or additions to the System or take any other action that could void the Limited Warranty on the System without System Owner’s prior written consent. If you make any modifications, improvements, revisions, or additions to the System, they will become part of the System and shall be System Owner’s property.

6.6 Access to the System. System Owner and its representatives shall give you reasonable notice of our need to access the Property whenever commercially reasonable.

6.6.1 You grant to System Owner and its designees and their employees, agents and contractors (and any inspectors under any state incentive program), a non-exclusive license running with the Property with the right to reasonably access all of the Property as necessary for the following purposes (the “**License**”):

- (i) operating, maintaining, owning, repairing, removing and replacing the System or making any additions to the System or installing complementary technologies on or about the location of the System;
- (ii) enforcing System Owner’s rights as to this Agreement and the System;

- (iii) installing, using and maintaining electric lines and inverters and meters, necessary to interconnect the System to your electric System at the Property and/or to the utility's electric distribution System; and/or
- (iv) taking any other action reasonably necessary in connection with installing, constructing, operating, maintaining, owning, repairing, removing, and replacing the System.

This access right shall continue for up to ninety (90) days after this Agreement term expires (the **"License Term"**) to provide System Owner with time to remove the System at the end of the Agreement. We shall provide you with reasonable notice of a need to access the Property when giving such notice is possible and commercially reasonable.

6.6.2 During the time that System Owner has access rights you shall ensure that its access rights are preserved and shall not interfere with or permit any third party to interfere with such rights or access. To the extent required or permitted by law, you agree that System Owner or its designee may record or file any customary memorandum of license or similar in the applicable registry with respect to the License granted hereunder. You agree that the System is not a fixture, but System Owner, as well as its assignees or designees, have the right to file any UCC-1 financing statement or fixture filing that confirms its interest in the System. Neither this Agreement nor any UCC-1 financing statement we may file in connection with this Agreement constitutes or imposes a consensual lien on your Property.

6.7 Indemnity. To the fullest extent permitted by law, you shall indemnify, defend, protect, save and hold harmless the System Owner and Installer, including their respective employees, officers, directors, agents, financing partners, successors, and assigns (the **"Indemnified Parties"**) from any and all third-party claims, actions, costs, expenses (including reasonable attorneys' fees, expert witness fees and expenses), damages, liabilities, penalties, losses, obligations, injuries, demands, and liens of any kind or nature arising out of, connected with, relating to or resulting from your negligence, willful misconduct, or violation of law; provided, that nothing herein shall require you to indemnify any Indemnified Party for its own negligence, willful misconduct or violation of law. The provisions of this paragraph shall survive termination or expiration of this Agreement.

6.8 Payments. SUBJECT TO YOUR RIGHT TO CANCEL BY SENDING NOTICE IN THE FORM AS PROVIDED HEREUNDER, YOU AGREE THAT THE OBLIGATION TO PAY ALL AMOUNTS DUE UNDER THIS AGREEMENT SHALL BE ABSOLUTE AND UNCONDITIONAL UNDER ALL CIRCUMSTANCES AND NOT BE SUBJECT TO ABATEMENT, DEFENSE, COUNTERCLAIM, SETOFF, RECOUPMENT, OR REDUCTION FOR ANY REASON WHATSOEVER, IT BEING THE EXPRESS INTENT OF THE PARTIES THAT ALL AMOUNTS PAYABLE BY YOU HEREUNDER SHALL BE, AND CONTINUE TO BE, PAYABLE IN ALL EVENTS INCLUDING BY YOUR HEIRS AND ESTATE AND YOU HEREBY WAIVE ALL RIGHTS YOU MAY HAVE TO REJECT OR CANCEL THIS AGREEMENT, REVOKE ACCEPTANCE OF THE SYSTEM, OR TO GRANT A SECURITY INTEREST IN THE SYSTEM.

7. WARRANTY.

Limited System Warranties and Services (“**Limited Warranties**”) are contained in **Exhibit B**. You agree that, as the System Owner, we have the right to make warranty claims for any part of the System. If you purchase the System during the Term, you will be assigned the Limited Warranties, which (a) may exclude coverage for (among other things) labor costs, and (b) have remaining coverage periods that are shorter than the remaining Term.

8. TITLE TRANSFER.

You agree that System Owner may assign, sell or transfer the System and this Agreement, or any part of this Agreement or the exhibits, without your consent. Such an assignment will not change our obligation to maintain and repair the System as set forth in the Warranty. An assignment of System Owner’s rights and/or obligations under this Agreement shall not result in any change to your rights and/or obligations under this Agreement.

9. OWNERSHIP OF THE SYSTEM; TAX CREDITS AND/OR REBATES.

9.1 System Ownership and Lease Classification. This Agreement is for the lease of the System, not the sale of the System or the System Interests (as defined below). System Owner exclusively owns and holds all right, title, and interest in and to the System. Other than the limited leasehold right to use the System and receive the Electricity it produces, you have no ownership rights in the System. You hereby expressly disclaims and irrevocably assigns to System Owner any and all right, title, and interest you may acquire, by operation of law or otherwise, in the System.

9.2 Ownership of System Interests.

9.2.1 Exclusive Ownership. System Owner shall have the exclusive right to enjoy and use all such benefits, whether such benefits exist now or in the future. System Owner exclusively owns all System components and associated intangible value streams, including, but not limited to: (i) all federal, state, and local tax credits, deductions, and allowances; (ii) all renewable energy credits, green tags, carbon offset credits, environmental certificates, or similar non-power attributes (“**RECs**”); (iii) all utility rebates, grants, or incentives related to the installation, ownership, or production of the System; and (iv) all rights to participate in Grid Services or demand response programs related to the System (“**System Interests**”) unless otherwise stated in **Exhibit C**.

9.2.2 Customer Covenants. You agree to keep the System and the System Interests free and clear from all liens, security interests, and encumbrances (other than those created by System Owner). You further agree to execute all documents, forms, and certifications that System Owner may reasonably request to evidence System Owner’s exclusive ownership of the System and the System Interests.

9.3 Cooperation Obligations.

9.3.1 You agree to provide all reasonable cooperation requested by System Owner and/or Installer to ensure System Owner may claim and fully utilize the System Interests. This cooperation shall include, without limitation:

- (i) Refraining from entering into any agreement with a utility or other third party that would grant that party the right to claim or monetize any System Interests without System Owner's prior written consent.
- (ii) Promptly executing and submitting, to the extent allowable by law, all necessary forms for interconnection agreements, net-metering agreements, Grid Service related agreements, and REC registrations, provided that such agreements and registrations are executed in the name of the Customer solely to comply with utility/regulatory requirements, and the ultimate benefit of the System Interests is assigned to System Owner. This may include to the extent allowable by law, entering into net metering agreements, interconnection agreements, Grid Service related agreements or forms, renewable energy/carbon offset credit registrations, and/or applications for rebates from the federal, state, or local government or a local utility and giving these tax credits, renewable energy/carbon credits, rebates, or other benefits to System Owner unless otherwise stated in **Exhibit C**.
- (iii) Allowing System Owner (or its agent) to access necessary metering and production data from the System.

9.4 System is Our Personal Property. You agree that the System is the System Owner's personal property. You understand and agree that this Agreement is not a contract to sell the System to you nor is it a contract to make improvements to Your Property. System Owner owns the System for all purposes, including any data generated from the System. You shall at all times keep the System free and clear of all liens, claims, levies and legal processes not created or approved by us, and shall at your expense protect and defend us against the same.

9.5 Notice of Ownership. We will not place a lien on your Property; however, you authorize System Owner or its assignees or designees to make filings and recordings with relevant governmental authorities as may be necessary to provide notice of our ownership of the System and our interest in the System Interests ("**Notice of Ownership of System**"). The Notice of Ownership is intended only to give notice of its rights relating to the System and is not a lien or encumbrance against the real estate property itself. Without limiting the foregoing, you agree that we may record, at our cost, a Notice of Ownership of System in the real property records where your Property is located in the form of a UCC-1 fixture financing statement. Our use of this filing is not a concession that the System is a fixture. Upon termination of this Agreement, we will record an instrument to terminate the Notice of Ownership of System. This provision does not limit the right of any Capital Provider to place a lien on the System pursuant to **Section 6.3.3**, or Installer from exercising any rights they

may have to file a mechanic's lien pursuant to state law. Refer to the Installation Order for your rights or responsibilities related to mechanics and materialmen's lien.

10. PURCHASING THE SYSTEM PRIOR TO END OF TERM.

In addition to the End-of-Term Purchase Option, you have the option to purchase the System prior to the end of the PV Term ("**Early Purchase Options**") as detailed below. To exercise any Early Purchase Options, provided there is no ongoing Customer Default, and you must to give us at least one (1) month, but not more than three (3) months' prior written notice. You can exercise an Early Purchase Option at the following times:

- (i) on the six (6) year anniversary of the beginning of the Term and every annual anniversary after the six (6) year anniversary; and
- (ii) at any time after the six (6) year anniversary of the beginning of the Term, when you sell your Property; and
- (iii) if we ever cease our operations and fail to provide for a substitute System provider.

10.2 Prior to End-of-Term Purchase Price. The price you will pay for the System under this section will be the System's fair market value ("**FMV**") and offset by the value of any remaining obligations owed to you by System Owner under this Agreement and the Installation Order, resulting in a price no less than \$0. If you and the System Owner cannot agree upon FMV, a third-party independent appraiser will be retained to compute the System's FMV.

10.3 Post-Purchase Obligations. As permissible by law, all of our obligations to you, in accordance with this Agreement, shall terminate after you purchase the System. All of the obligations and benefits in the Installation Order with the Installer shall survive the purchases of the System and transfer to you.

11. SELLING YOUR REAL ESTATE PROPERTY.

If you sell your real estate property, you shall do one of the below and give us at least fifteen (15) days' but not more than three (3) months' prior written notice:

- (i) **Transfer the Agreement.** If the person buying your real estate property agrees to abide by the terms and conditions of this Agreement, then you and the person buying your real estate property can sign a transfer agreement, assuming all of your rights and obligations under this Agreement. If you transfer the Agreement, you must complete the transfer notification prior to the transfer of title of your property. You will be responsible for this Agreement until such time that the new real estate property owner and you complete the transfer agreement. You may initiate the transfer agreement at <https://transfer.participate.energy> or by emailing transfer@participate.energy.

Customer(s) Initials: _____

- (ii) **Purchase the System.** If you purchase the System then subsequently sell your real estate property, the System will be included in the sale of the real estate property and any applicable benefits and obligations will transfer to the person buying your real estate property.

If you sell your real estate property and cannot comply with any of the options above, you will be in default under this Agreement. The requirements of this Section 11 include and shall apply with equal force to a real estate property sale by your estate, trustee, or heirs in the event of your death.

This Agreement is free of any restrictions that would prevent the real estate property owner from freely transferring this Agreement and the Property so long as the transferee is able to and complies with all obligations of this Agreement. In the event of a foreclosure of the real estate property, your lender has the right (but not the obligation) to do ONE of the following:

- (i) purchase the System under Section 10;
- (ii) if after the fifth (5th) anniversary of the start of Term, terminate this Agreement subject to your obligations under Sections 14 and 15; and
- (iii) freely transfer this Agreement and System to itself and then again to a future real estate property owner under the same right you have under this Section 11.

We will not prohibit the sale, conveyance, or refinancing of the real estate property. We may file a Notice of Ownership pursuant to Section 9.5. The System Owner shall explain the Notice of Ownership to any subsequent purchasers of the real estate property and any related lenders as requested. The System Owner shall also accommodate reasonable requests from lenders or title companies to facilitate a purchase, financing or refinancing of the real estate property.

EXCEPT AS SET FORTH IN THIS SECTION 11 AND SECTION 6.3, YOU WILL NOT ASSIGN, SELL, PLEDGE OR IN ANY OTHER WAY TRANSFER YOUR INTEREST IN THIS AGREEMENT WITHOUT OUR PRIOR WRITTEN CONSENT, WHICH SHALL NOT BE UNREASONABLY WITHHELD.

12. LOSS OR DAMAGE.

Unless you are negligent or you intentionally damage the System, the System Owner will bear all of the risk of loss, damage, theft, destruction, or similar occurrence to any or all of the System. Including your obligation to include the System on your real estate property's casualty and general liability insurance with System Owner named as additional insured, no loss, damage, theft, or destruction will excuse you from your obligations under this Agreement.

If there is loss, damage, theft, destruction, or a similar occurrence affecting the System, and you are not in default of this Agreement, you shall cooperate with us to have the System repaired pursuant to the Limited Warranty.

13. LIMITATION OF LIABILITY.

13.1 No Consequential Damages. LIABILITY UNDER THIS AGREEMENT SHALL BE LIMITED TO DIRECT, ACTUAL DAMAGES ONLY. YOU AGREE THAT IN NO EVENT SHALL A PARTY BE LIABLE TO THE OTHER PARTY FOR CONSEQUENTIAL, INCIDENTAL, PUNITIVE, EXEMPLARY, SPECIAL, OR INDIRECT DAMAGES, EXCEPT AS A RESULT OF THE GROSS NEGLIGENCE, WILLFUL MISCONDUCT OR FRAUD OF SUCH PARTY.

13.2 Actual Damages. Except for claims under Section 6.7 (INDEMNITY), no party's liability to any other party will exceed an amount equal to the maximum amount that could be payable by you under Section 14.2 (REMEDIES IN CASE OF DEFAULT). Damages to your Property or belongings resulting from the installation or operation of the System are exclusively covered in the Limited Warranty Set Forth in Section 7 (WARRANTY).

14. DEFAULT.

14.1 Customer Default. You will be in default under this Agreement if any of the following occur (each a "Customer Default"):

- (i) you fail to make any payment when it is due and such failure continues for a period of ten (10) days;
- (ii) you fail to perform any material obligation that you have undertaken in this Agreement (which includes doing something you have agreed not to do, like alter the System) and such failure continues for a period of fourteen (14) days after written notice;
- (iii) you breach the Installation Order or otherwise fail to cooperate with Installer for the purpose of the installation, including installing, using and maintaining electric lines, inverters and meters necessary to interconnect the System to your electric system;
- (iv) you have provided any false or misleading information to qualify for or obtain this Agreement;
- (v) you assign, transfer, encumber, sublet, or sell this Agreement or any part of the System without our prior written consent; or
- (vi) you make an assignment for the benefit of creditors, admit in writing its insolvency, file, or there is filed against you, a voluntary petition in bankruptcy, are adjudicated bankrupt or insolvent or undertake or experience any substantially similar activity.

14.2 Remedies in Case of Default. If you default under the terms of this Agreement, we may take any one or more of the following actions. If this Agreement or the law requires us to do so, we will give you notice and wait any period of time required before taking any of these actions. We may:

- (i) terminate this Agreement;

- (ii) take any reasonable action to correct your default or to prevent our loss;; any amount we pay will be added to the amount you owe us and will be immediately due;
- (iii) require you, at your expense, to return the System or make it available to us in a reasonable manner;
- (iv) proceed, by appropriate court action, to enforce performance of this Agreement and to recover damages for your breach;
- (v) disconnect, turn off or take back the System by legal process or self-help, subject to applicable law.
- (vi) report such non-operational status of the System to your utility, informing them that you are no longer net metering;
- (vii) charge you a reasonable reconnection fee for reconnecting the System to your utility or turning the System back on after we disconnect or turn off the System due to your default;
- (viii) recover from you a payment equal to the (i) any and all direct damages incurred by System Owner as a result of your default, plus (ii) any loss of actual or potential Grid Service income for the remaining Term, discounted to net present value at a discount rate of 3% ("**Income Loss**"), plus (iii) reasonable compensation, on a net after tax basis assuming a tax rate of 35%, for the loss or recapture of (A) the investment tax credit equal to the percentage amount under then applicable tax laws of the System cost, including installation; and (B) accelerated depreciation over five (5) years in a percentage amount allowed under then applicable tax laws of the System cost, including installation, plus (iv) all taxes, late charges, penalties, interest, and all or any other sums then accrued or due and owing; or
- (ix) use any other remedy available to us in this Agreement or by law.

You agree to repay us for any reasonable amounts we pay to correct or cover your default. You also agree to reimburse us for any costs and expenses we incur relating to the System's return resulting from early termination. By choosing any one or more of these remedies, we do not give up any right to use another remedy. By deciding not to use any remedy should this Agreement be in default, we do not give up our right to use that remedy in case of a subsequent default.

15. SYSTEM REMOVAL; RETURN.

Upon the expiration or earlier termination of this Agreement, and provided Customer has not exercised any option to purchase the System, System Owner shall, at its sole cost and expense, as reasonably practicable (but within at least ninety (90) days after the end of the PV Term) cause the System and all associated solar equipment to be uninstalled and removed from the Property. Following the removal of the System, System Owner shall arrange for the proper repair and sealing of all penetration points, mounting locations, and equipment interfaces necessary for the removal.

16. APPLICABLE LAW.

THIS AGREEMENT, AND ANY INSTRUMENT OR AGREEMENT REQUIRED HEREUNDER, SHALL BE GOVERNED BY, AND CONSTRUED UNDER, THE INTERNAL LAWS OF THE STATE WHERE THE PROPERTY IS LOCATED.

17. DISPUTE RESOLUTION; MEDIATION; ARBITRATION; CLASS ACTION WAIVER

THIS SECTION GOVERNS ANY DISPUTE BETWEEN YOU AND SYSTEM OWNER. PLEASE READ IT CAREFULLY.

17.1 Good Faith Efforts. The Parties agree to make a good faith effort to resolve any dispute informally. If the Parties cannot reach a resolution within forty-five (45) days after you notify System Owner of the dispute, either Party may commence a formal proceeding pursuant to the process detailed below. For any property, installation, or performance concerns, or to perform work as may be required by applicable law, you must allow us access to inspect the System and, to the extent helpful, the Property or any other property, data, information, or materials related to the matter.

17.2 ARBITRATION: If the Parties are unable to resolve a dispute informally, you and System Owner agree that any dispute arising out of or relating to any aspect of the relationship between you and System Owner will be resolved exclusively by arbitration except as specifically provided below. The arbitration, including the selection of the arbitrator, will be administered by the American Arbitration Association (“**AAA**”) under its Consumer Arbitration Rules and Mediation Procedures, as supplemented by the Consumer Due Process Protocol (collectively, the “**AAA Rules**”), rather than in a court before a judge or jury. The location of the arbitration shall be the AAA office closest to the Property unless otherwise agreed to by the Parties, and the arbitration shall be administered by a single neutral arbitrator. The Parties may pursue all claims and remedies available under this Agreement in the arbitration. This agreement to arbitrate all disputes includes claims arising before this Agreement, such as claims related to statements about our products and services. You and System Owner grant the arbitrator the exclusive authority to resolve any dispute related to the interpretation, applicability, or enforceability of these terms or formation of this Agreement, including the arbitrability of any dispute and any claim that all or any part of these terms are void or voidable. The arbitrator has authority to allocate all or part of the costs of the arbitration, including the fees of the arbitrator, filings fees, expert witness fees, costs, expenses, and attorneys’ fees to the prevailing party. Attorneys’ fees awarded to System Owner for collection of any amounts due shall not exceed 20% of the amounts awarded to System Owner. The arbitrator’s decision will be final and may be entered and enforced in any court having jurisdiction.

The arbitrator shall have the authority to award any legal or equitable relief that a court could order or grant under this Agreement. HOWEVER, THE ARBITRATOR WILL NOT HAVE AUTHORITY TO MAKE ANY RULING OR AWARD APPLICABLE TO ANY CLAIMANT OTHER THAN YOU OR ANY TRANSACTION OTHER THAN YOURS. SYSTEM OWNER AND YOU FURTHER AGREE THAT ALL CLAIMS AND DISPUTES WILL BE BROUGHT ONLY ON AN INDIVIDUAL BASIS, AND THE PARTIES WAIVE THE RIGHT TO BRING OR PARTICIPATE IN A CLASS ACTION, PRIVATE ATTORNEY GENERAL, OR REPRESENTATIVE ACTION (“**CLASS ACTION WAIVER**”). THE

ARBITRATOR HAS NO AUTHORITY TO CONSIDER OR RESOLVE ANY CLAIM OR DISPUTE, OR ISSUE ANY RELIEF ON A CLASS, COLLECTIVE, OR REPRESENTATIVE BASIS, UNLESS THE ARBITRATOR OBTAINS EXPRESS CONSENT FROM ALL PARTIES. YOU MAY ALSO BRING INDIVIDUAL DISPUTES IN SMALL CLAIMS COURT. NOTWITHSTANDING THIS PROVISION, IF A COURT OF COMPETENT JURISDICTION FINALLY DETERMINES THE CLASS ACTION WAIVER TO BE INVALID, OR UNENFORCEABLE, THEN YOU AND SYSTEM OWNER AGREE THAT SUCH WAIVER SHALL NOT BE SEVERED AND THAT THIS ARBITRATION AGREEMENT SHALL BE VOID IN ITS ENTIRETY WITHOUT EFFECT ON THE REMAINDER OF THIS AGREEMENT.

YOU AND SYSTEM OWNER AGREE THAT THIS AGREEMENT TO ARBITRATE DOES NOT APPLY TO ANY CLAIM WHERE THE AMOUNT IN CONTROVERSY IS LESS THAN THE JURISDICTIONAL LIMIT OF THE SMALL CLAIMS COURT IN THE JURISDICTION WHERE YOU RESIDE, PROVIDED, HOWEVER, THAT YOU AND System Owner AGREE THAT ANY SUCH CLAIMS MAY BE BROUGHT ONLY ON AN INDIVIDUAL BASIS AND NOT AS A CLASS ACTION.

YOU HEREBY ACKNOWLEDGE THAT YOU ARE VOLUNTARILY AGREEING TO ARBITRATE ANY AND ALL DISPUTES ARISING OUT OF OR RELATING TO THIS AGREEMENT, YOU ARE WAIVING YOUR RIGHT TO BRING AN ACTION IN COURT OTHER THAN CLAIMS BROUGHT IN SMALL CLAIMS COURT, AND YOU ARE AGREEING TO ARBITRATE ON AN INDIVIDUAL BASIS AND NOT AS PART OF A CLASS.

You can obtain more information about arbitration and the AAA Rules by calling any AAA office, or online at www.adr.org, or by calling 1-800-778-7879.

Customer(s) Signature(s): _____ - Accepted

18. WAIVER.

Any delay or failure of a party to enforce any of the provisions of this Agreement, including but not limited to any remedies listed in this Agreement, or to require performance by the other party of any of the provisions of this Agreement, shall not be construed to (i) be a waiver of such provisions or a party's right to enforce that provision; or (ii) affect the validity of this Agreement.

19. NOTICES.

All notices under this Agreement shall be in writing and shall be delivered by personal delivery, facsimile transmission, electronic mail, overnight courier, or certified or registered mail, return receipt requested.

20. ENTIRE AGREEMENT; CHANGES.

This Agreement contains the parties' entire agreement regarding the sale and purchase of power generated by the System. There are no other agreements regarding this Agreement, either written or oral. Any change to this Agreement must be in writing and signed by both parties. If any portion of this Agreement is determined to be unenforceable, the remaining provisions shall be enforced in accordance with their terms or shall be interpreted or re-written so as to make them enforceable. The Agreement may be assigned, sold or transferred by System Owner without your consent to a third party that will be bound to all the terms of the Agreement at System Owner's sole discretion. If such a transfer occurs, you will be notified if this will change

the address or phone number to use for Agreement-related questions, payments or service requests.

21. PUBLICITY.

You give us permission to take pictures of the System as installed on your Property to show to other customers, including informational materials, promotional materials and/or displays on our website(s).

☐ Check this box to opt out of this Section 21.

SIGNATURE PAGE AND NOTICE TO CUSTOMERS

- A.** LIST OF DOCUMENTS TO BE INCORPORATED INTO THE CONTRACT. These documents are incorporated into this Agreement and apply to the relationship between you and us: (1) Exhibit A – Payment Schedule and Terms; (2) Exhibit B – Limited System Warranties and Services; (3) Exhibit C – Additional Incentives; (4) Exhibit D – Form Notices of Cancellation; (5) Exhibit E – State Legal Notices; and any additional attachments, disclosures and exhibits, as applicable.
- B.** NOTICE TO THE LESSEE (YOU): **This is a lease. You are not buying the System.** Do not sign this lease before you read it. You are entitled to a completed copy of this lease when you sign it.
- C.** THIS CONTRACT CONTAINS A BINDING ARBITRATION PROVISION WHICH MAY BE ENFORCED BY THE PARTIES.

NOTICE TO OWNER: DO NOT SIGN THIS CONTRACT IF BLANK. YOU ARE ENTITLED TO A COPY OF THE CONTRACT AT THE TIME YOU SIGN. YOU, THE CUSTOMER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAY IF YOU ARE 65 OR OLDER) AFTER THE DATE OF THE TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM (EXHIBIT D) FOR AN EXPLANATION OF THIS RIGHT.

CUSTOMER(S) SIGNATURES:

Signature(s): _____

Name(s): _____

Date(s): _____

COMPANY: By signing below, Company agrees to the terms and conditions of this Agreement.

Participate Holdings, LLC

Signature: _____

Title: _____

Name: _____

Date: _____

Pey Shadzi
AUTHORIZED SIGNATORY

Pey Shadzi

EXHIBIT A

Payment Schedule & Terms

Customer Payments:

The Net Amount Due that you owe System Owner is \$_____.

Payment Schedule (Progress Payments). Pursuant to Section 3.3 of the Customer Agreement, payments must be made directly to the Installer, acting solely as System Owner's agent for collection. You agree to pay the Net Amount Due in progress payments based on the below schedule.

Payment #	Due Upon	Amount Due
1.		\$_____*
2.		\$_____
	TOTAL:	\$_____

LIMITATION ON PAYMENT #1: Notwithstanding any other term in this Agreement, Payment #1 shall not exceed the lesser of one thousand dollars (\$1,000.00) or ten percent (10%) of the Net Amount Due.

Customer Payment Terms: Payment must be received by Installer by the due date indicated on the table above or the applicable invoice.

Customer Payment Instructions:

Customer(s) Initials: _____

EXHIBIT B

LIMITED SYSTEM WARRANTIES AND SERVICES

This **Exhibit B** describes the specific limited warranties and ongoing services provided by the **System Owner** to the Customer for the solar photovoltaic system (“**PV System**”) and, if applicable, energy storage system (“**Battery**”) at your property (collectively, the “**System**”).

1. **System Owner’s Ultimate Warranty Responsibility.** The System Owner retains ownership of the System and is ultimately responsible for maintaining the System in good working condition throughout the Term of this Agreement.

System Owner’s Sole Obligation: If the System is damaged, fails to operate, or otherwise requires repair or replacement under the terms of this Agreement and the warranties set forth below, the System Owner’s sole obligation to you is to repair or replace the affected System or System components to restore the System to good working condition. The System Owner may use new or certified reconditioned parts for any repairs or replacements.

2. **Limited Manufacturer Warranties.** The individual components of the System (e.g., solar panels, inverters, batteries) are protected by warranties provided directly by their respective manufacturers (each, a “**Limited Manufacturer Warranty**”).

- (a) **Ownership of Claim.** As the owner of the System, the System Owner retains the exclusive right to make and pursue claims under the Limited Manufacturer Warranties on your behalf.
- (b) **Transfer.** If you exercise your option to purchase the System at the end of the PV Term (or upon an earlier permitted buyout), all remaining Limited Manufacturer Warranties will be legally transferred to you at the time of purchase.
- (c) **Disclaimer.** **YOU UNDERSTAND THAT THE SYSTEM IS WARRANTED SOLELY UNDER THE LIMITED MANUFACTURER WARRANTIES AND THE SYSTEM OWNER’S OBLIGATIONS HEREIN. NEITHER THE INSTALLER NOR THE SYSTEM OWNER MAKES ANY REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, AS TO THE MERCHANTABILITY, FITNESS FOR ANY PARTICULAR PURPOSE, CONDITION, DESIGN, CAPACITY, SUITABILITY, OR PERFORMANCE OF THE SYSTEM BEYOND WHAT IS EXPLICITLY STATED IN THIS AGREEMENT.**

3. **Limited Labor Support for Manufacturer Warranties.** System Owner is obligated to provide the necessary labor, at no cost to you, to service claims made under the System’s Limited Manufacturer Warranties during the Term of the Agreement.

To fulfill this System Owner obligation, System Owner agrees to provide (through its Installer or other authorized service partner) all necessary labor for these warranty repairs and replacements during this period at no charge to you. This means that if a component covered by a Manufacturer Warranty fails, the System Owner will ensure the labor to install the replacement part is provided without any charge to you.

4. **Non-Warranty Service Call Fees.** If you request an on-site visit or service, and the issue is not covered by the Installer’s Work Guarantees or the System Owner’s Limited System Warranties in this **Exhibit B**, the following applies:

- (a) Trip Fee. The Installer may charge an initial trip fee of up to \$350.00.
- (b) Service Quote. You will receive a price quote for the remaining services (e.g., panel cleaning, checking breakers, repairing a fault caused by loss of internet connection, damage caused by you).
- (c) You will then have the choice to authorize the Installer to proceed with the services at the quoted price.

5. System Owner's Ongoing Services.

- (a) 24/7 System Monitoring. The System Owner provides remote, 24/7 performance monitoring at no additional cost to you for the entire Term of the Agreement. This allows us to track production and detect potential faults.
- (b) Maintenance Management. The System Owner is responsible for coordinating and ensuring necessary maintenance and repairs are performed on the System, pursuant to the terms of this Exhibit.
- (c) Grid Services. The System Owner maintains the right to enroll the System in new or existing Grid Services programs (such as demand response or capacity programs), modify or change enrollment, participation levels, or service providers throughout the Term of this Agreement, at the System Owner's sole discretion.

6. System Owner's Installation and Property Protection Obligation. The System Owner is contractually obligated to ensure the installation is performed by a licensed contractor and, in the event of damages caused by the installation process, to insure and cover damages to your property.

- (a) Installation Damage. The System Owner maintains insurance to cover, and will be responsible for, repairing damages to your property (house, landscaping, belongings) caused directly by faulty installation or negligent acts of the Installer or System Owner's agents. Claims for such damages are exclusively covered by this provision and are not subject to Section 13 (Limitation of Liability) of the Customer Agreement.
- (b) Required Installation Standards. The System Owner agrees to ensure the System is constructed: (i) according to approved written plans; (ii) using a licensed contractor; and (iii) in accordance with all applicable laws and permits.

7. Property Repairs and System Removal. Pursuant to Section 6.2 of the Customer Agreement, if you require System removal during the Term (e.g., for roof repair or home renovation) that could interfere with the System:

- (a) You must obtain System Owner's prior written consent.
- (b) You must use a vendor approved by the System Owner.
- (c) The cost of removal and re-installation will be your sole financial responsibility.

8. Risk of Loss and Damage. The System Owner bears the risk of loss, damage, theft, or destruction of the System, unless the damage or loss is caused by:

- (a) Your negligence or willful misconduct;

- (b) Any work performed by a third-party contractor or agent not approved in writing by System Owner, including work performed pursuant to Section 6.2 of the Customer Agreement; or
- (c) Your failure to include the System on your casualty insurance policy as required by the Customer Agreement, resulting in insufficient insurance proceeds to cover the cost of repair or replacement.

In all cases of loss or damage, you agree to cooperate with the System Owner and any insurance provider to pursue potential claims and restore the System pursuant to this Limited Warranty.

EXHIBIT C

Additional Incentives

Special subsidized or incentive pricing may be available to you depending upon your or the System's ability to qualify for certain programs or any other form of incentive.

By signing this Exhibit C, you acknowledge that some Additional Incentives are "first come, first served" and are accepted at your own risk if the funds or incentives are no longer available. Any incentives which have a first come, first serve risk will be identified below as "At-Risk."

You further acknowledge that signing this Exhibit C and applying for Additional Incentives does not guarantee your qualification or receipt for the Additional Incentive. All actions required to qualify for and receive Additional Incentives are solely the responsibility of you and the Lessor. Please understand these risks ahead of entering into this Agreement.

If you do not qualify for an included At-Risk Incentive Programs, partially or in whole, or there are no Additional Incentive funds available to you, you further acknowledge that either of us may cancel your order any time up to 14 calendar days prior to the planned System installation without penalty.

Incentive Description	Incentive Amounts	Requirements and Process	Beneficiary	At-Risk (Y/N)

I have read and acknowledge this Exhibit C in its entirety.

CUSTOMER(S) SIGNATURES:

Signature(s): _____

Name(s): _____

Date(s): _____

COMPANY:

Participate Holdings, LLC

Signature: _____

Title: _____

Name: _____

Date: _____

Pey Shadzi

AUTHORIZED SIGNATORY

Pey Shadzi

EXHIBIT D

Notice of Cancellation

Effective Date: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN 3 BUSINESS DAYS (OR 5 BUSINESS DAYS IF YOU ARE 65 OR OLDER) BUSINESS DAYS FROM THE ABOVE DATE.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN TEN BUSINESS DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE GOODS AVAILABLE TO THE SELLER AND THE SELLER DOES NOT PICK THEM UP WITHIN TWENTY DAYS OF THE DATE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE GOODS WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE GOODS AVAILABLE TO THE SELLER, OR IF YOU AGREE TO RETURN THE GOODS TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, OR SEND A TELEGRAM TO PARTICIPATE ENERGY AT 2093 PHILADELPHIA PIKE #3125, CLAYMONT, DE 19703, ATTENTION: DOCUMENT CONTROL, NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAYS IF YOU ARE 65 OR OLDER) FOLLOWING THE TRANSACTION DATE OF _____.

I hereby cancel this transaction on: _____ **(Date)**

Customer (print): _____

Signature: _____

Address: _____

Customer(s) Initials:		BY INITIALING, YOU ACKNOWLEDGE RECEIPT OF THIS NOTICE OF CANCELLATION, AS OF THE EFFECTIVE DATE.
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NOTICE OF CANCELLATION
(Duplicate Copy for Customer)

Effective Date: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN 3 BUSINESS DAYS (OR 5 BUSINESS DAYS IF YOU ARE 65 OR OLDER) FROM THE ABOVE DATE.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN TEN BUSINESS DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE GOODS AVAILABLE TO THE SELLER AND THE SELLER DOES NOT PICK THEM UP WITHIN TWENTY DAYS OF THE DATE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE GOODS WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE GOODS AVAILABLE TO THE SELLER, OR IF YOU AGREE TO RETURN THE GOODS TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, OR SEND A TELEGRAM TO PARTICIPATE ENERGY AT 2093 PHILADELPHIA PIKE #3125, CLAYMONT, DE 19703, ATTENTION: DOCUMENT CONTROL, NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAYS IF YOU ARE 65 OR OLDER) FOLLOWING THE TRANSACTION DATE OF _____.

I hereby cancel this transaction on: _____ (Date)

Customer (print): _____

Signature: _____

Address: _____

EXHIBIT E

California State Disclosures

This **Exhibit E** is incorporated into the Customer Agreement between Participate Holdings, LLC (“**System Owner**”) and the undersigned **Customer(s)** regarding the Property at _____.

CALIFORNIA ACKNOWLEDGMENTS

1. **SOLAR CONSUMER PROTECTION GUIDE:** I acknowledge that I have received, read, and signed the *California Solar Consumer Protection Guide* provided by the California Public Utilities Commission (CPUC) **before** signing this Agreement.

Customer(s) Initials: _____

2. **DATA SOURCE ACKNOWLEDGMENT:** I acknowledge that the energy savings estimates provided to me were calculated using: ☐ Past utility bills provided by me. ☐ Estimates based on homes of similar size and location (if bills were not available).

Customer(s) Initials: _____

3. **INSURANCE OBLIGATION:** I understand that **I am responsible** for maintaining the insurance coverage for the System as described in Section 6.1(iv) of the Agreement. I acknowledge that the System Owner is to be named as an “Loss Payee” on my homeowner's policy.

Customer(s) Initials: _____

ACCEPTED AND AGREED:

Customer(s) Signature(s): _____ **Date:** _____

INSTALLATION ORDER

Date signed by Customer: _____

Installer: Cosmic Solar & Roofing _____

License #: 831831 _____

You are entitled to a completely filled in copy of this Installation Order, signed by both you and Installer, before any work may be started.

The Notice of Cancellation (Attachment 4 to the Installation Order) may be sent to the Installer at the following address: 943 Poinsettia Ave, Ste 401 _____, Vista CA 92081 _____

*****CUSTOMER PLEASE READ*****

Please review this Installation Order carefully. This Installation Order is effective as of the date indicated in the signature page hereunder (the “**Effective Date**”) and outlines the scope of work for the solar photovoltaic system (“**PV System**”) and/or energy storage system (“**Battery**”) (individually or collectively, the “**System**”).

- 1. Location of Installation.** You and Installer acknowledge and agree that the System, to be installed on your Property described in **Attachment 1**, will be designed, procured, installed, tested, and interconnected by Installer (the “**Installation**”). Installer’s work (the “**Work**”) under this Installation Order: design the System, secure basic building and electrical permits as needed (“**Permits**”), install the System on the Property and remove debris and materials, complete and submit utility interconnection documents, coordinate building, electrical, and utility inspections required for operation of the System. No other work is included unless expressly stated elsewhere in this Installation Order or **Attachment 3**. If Installer uses a subcontractor for any material portion of installation of the System, then Installer will provide their name and license information upon your request, or as otherwise may be required by law.

Installer will furnish all work, labor, tools, equipment, materials, supervision, scheduling, coordination, and contract administration necessary to complete in a good and workmanlike manner the following: the installation of a solar power generating facility and, if applicable, a Battery, according to the specifications stated in the Program Scope of Work attached as **Attachment 1**. The materials and equipment to be used in the construction of the System are described more fully in **Attachment 1**.

- 2. Installation Timeline.**

Installer will contact you to schedule installation of the System. During installation, Installer might choose to make minor repairs commonly needed to install the System (like simple electric upgrades and roof preparation). Installer promises to repair or pay for damage negligently caused to your home or your Property during Installation of the System (and that will be your only remedy). You must notify Installer in writing of any damage caused by the installation within ten (10) days of your discovery of the damage or when you reasonably should have discovered the damage.

Installer will be deemed to have started work under this Installation Order on the date the first permit is applied for. After all required permits and approvals are obtained, Installer will install the System pursuant to the manufacturers' instructions, applicable law, and requirements of the local permitting and inspection authorities and your electric utility. Any specific meters required by your Utility will be included in the installation of the System.

Customer(s) Initials:		BY INITIALING, YOU AUTHORIZE INSTALLER TO ACT AS YOUR AGENT AND ATTORNEY-IN-FACT WITH RESPECT TO ANY AND ALL PERMITTING APPLICATIONS, INTERCONNECTION APPLICATIONS, INCENTIVE AND REBATE APPLICATIONS, AND OTHER DOCUMENTATION NECESSARY FOR INSTALLER TO PERFORM THE WORK UNDER THIS INSTALLATION ORDER.
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Inspection. After installation is complete, Installer will work with the applicable local government authority and Utility, if applicable, to inspect the System. Installer is not responsible for any scheduling delays caused by the permitting authority or changes to the installed System required by the permitting authority.

Utility Interconnection. After Installer receives approvals from the permitting authority and Utility, if needed, Installer will submit all necessary paperwork to the Utility and request permission to operate and interconnect the System ("PTO"). You agree that you will continue service with your Utility.

3. **Permission to Operate.** Installer's work includes ensuring that the System obtains permission to operate (PTO) from your utility, provided that PTO is required for the System. There may be occasional delays in obtaining PTO. Installer will work with you and your utility to try to minimize such delays. You agree to provide all necessary assistance to allow Installer to obtain PTO subject to regulation, policy, code and any applicable utility interconnection approval (if required), Installer and System Owner may begin operating the System in "non-export mode" prior to PTO.
4. **Permissible Delays.** The above Installation Timeline is an estimate and may be adjusted as provided in this Installation Order, including for delays due to undisclosed, unforeseen, subsequently arising conditions, additional work required to make the Property suitable for the System, or delays of permitting authorities, your Utility, homeowners' associations, or other third parties, inclement weather, or other conditions outside our control. Installer anticipates that the installation of the System will commence on or before _____ days from the Effective Date and be completed on or before _____ days from the Effective Date.
5. **System Owner Relationship & Contract Price.** The contract price for the goods and/or services performed in connection with this Installation Agreement is \$0.00. You have entered into a separate agreement to lease the System from System Owner (the "**Customer Agreement**") for a specified term, a company separate from Installer. You acknowledge that System Owner will be the sole owner of, and hold title to, the System.
6. **Your Participation.** You agree to participate in the terms set forth herein in this Installation Order and the Customer Agreement ("**Participation**"). Participation means you agree to allow Installer to install the System on your Property, cooperate with any reasonable requests of

Installer that are necessary for Installer to fulfill their obligations under this Installation Order, provide Property access for regular operation and maintenance of the System, and to purchase power generated and energy storage services (as applicable) by the System during the term of your Customer Agreement.

7. **Updates to Scope of Work (Attachment 1)**. The materials and components and initial System specifications (“**System Design**”) are estimates based on the preliminary design of the System. Installer may perform additional reviews of the System Design, including site visits to the Property to verify feasibility of the System Design. If a change is expected to impact either (i) System specification by more than a three percent (3%) decrease or a ten percent (10%) increase, or (ii) the Net Amount Due under your Customer Agreement, Installer will update the terms of your Participation. You will have seven (7) days after you receive the updated terms to reject them. If you do not reject them, or if you move forward with scheduling your installation, that means that you agree to the updated Participation terms and authorize Installer to develop and submit permit packets and otherwise prepare for your upcoming installation.
8. **Cancellation**. You have the right to cancel this transaction without penalty within three (3) business days (or longer if required by state law) of the Effective Date. Please refer to **Annex 1** for any additional state-specific rights, limitations, or disclosures that may apply.
9. **Homeowners’ Association and any other Approvals**. You are responsible for getting any required approvals and authorizations for installing the System from entities other than from the Utility, Building and Safety Departments, or local government agencies. If your home is governed by a homeowners’ association or similar community organization, you are responsible for obtaining any required approvals and authorizations for the System.

Customer(s) Initials:	BY INITIALING, YOU AGREE THAT IT IS YOUR RESPONSIBILITY TO WORK WITH ANY PROPERTY OR HOMEOWNERS’ ASSOCIATIONS YOU MAY BE SUBJECT TO. YOU ACKNOWLEDGE THAT YOUR FAILURE TO DO SO MAY RESULT IN THE CANCELLATION OR DELAY OF YOUR INSTALLATION. You agree that you will be solely responsible for, and will indemnify, Installer for expenses incurred directly and indirectly by Installer in connection with your election to waive and not obtain advance written HOA approval for the installation of the System.
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10. **Workmanship and Installation Warranties**. The Installer is providing a set of guarantees related to the quality of the physical work performed on your property. Note that the System Owner is responsible for the overall long-term operation, maintenance, and product warranties (see **Exhibit B – Limited System Warranties & Services** in your Customer Agreement). Installer provides the following warranties (collectively, the “**Warranty**”):

Limited Workmanship and Installation Warranty. For ten (10) years from the date when Installer completes the installation of the System, Installer warrants that it will repair or replace any Work (as defined below) on the System that it does not perform in a good

workmanlike manner according to the standards of care and diligence generally practiced by solar engineering, construction, installation, and roofing companies when installing residential photovoltaic solar power with optional incorporated energy storage Systems of a similar size and type as the System in the geographic region where your property is located, and pursuant to (i) good engineering design practices, (ii) manufacturer's instructions, (iii) applicable law (including local codes and standards), (iv) required governmental approvals and permits, and (v) applicable requirements of the local utility. Work includes design, installation, construction, and roofing to the extent performed on Your project, but does not include materials. Installer may use new or reconditioned parts to make repairs and may substitute materials or types of equipment if necessary.

Roof Penetration Warranty. For ten (10) years from the date when Installer completes the installation of the System, Installer warrants that it will repair your roof against leaks caused by penetration during the installation of the System.

If Installer removes the System, for one (1) year following the removal of the System, Installer warrants that it will repair your roof against leaks caused by the removal of the System. Any portions of your roof impacted by such removal of the System will be substantially returned to their original condition following the removal of the System (ordinary wear and tear excepted).

Roof Warranty Waiver. You acknowledge that installation of the System may void any roofing warranty of the roof manufacturer or roof installer. Installer assumes no responsibility if the installation voids your roofing warranty. Before installation, you should check with the roofer or builder concerning any impact the System will have on a roof warranty.

EXCEPT AS SPECIFICALLY DESCRIBED IN THIS INSTALLATION ORDER, YOU UNDERSTAND THERE ARE NO REPRESENTATIONS OR WARRANTIES, EXPRESSED OR IMPLIED, AS TO THE MERCHANTABILITY, FITNESS FOR ANY PURPOSE, CONDITION, DESIGN, CAPACITY, SUITABILITY OR PERFORMANCE OF THE SYSTEM OR ITS INSTALLATION.

11. Warranty Exceptions and Exclusions. The Warranty shall be void and voidable if work is performed by you or your contractors.

The Warranty does not cover any (i) leaks that occur in areas of the Property's roof not impacted by the System or the associated roof penetrations, (ii) pre-existing and/or underlying failures of the Property's roof or (iii) foreign objects acting on the Property's roof (hail, golf balls, etc.).

The Warranty does not apply to the following: (i) work performed or materials used by anyone other than the Installer; (ii) any materials that were modified, repaired or attempted to be repaired by anyone other than us, our agents, our representatives, our designees or the Installer without our prior written approval; (iii) any damage resulting from your breach of the Agreement; (iv) any damage not caused by us, the Installer or a System defect; (v) any damage resulting from ordinary wear and tear; (vi) any damage resulting from mold, fungus and other organic pathogens; (vii) shrinking/cracking of grout and caulking; (H) fading of paints and finishes exposed to sunlight; and (viii) any damage caused by ball strikes.

12. Additional Products and Services (Attachment 2). If you have included any additional products or services related to the installation of the System, such additional products and services will be appended to Attachment 2 and approved by you.

13. Property Access, Remote Monitoring and Firmware Upgrades. You agree that Installer and the System Owner can access the System, including remotely, to monitor its performance, perform diagnostics, and upgrade firmware. You also hereby grant to Installer, System Owner, and their respective agents, employees, contractors and the utility a non-exclusive license running with the Property for access to, on, over, under and across the Property the date of the Installation Order until the date that is ninety (90) days following the date of expiration or earlier termination of this Installation Order (the “**License Term**”) for the purposes of performing all of the Program-related obligations and enforcing all of the Program-related rights set forth in this Installation Order and otherwise as required in Installation Order to effectuate the purposes of the Program. During the License Term, you shall preserve and protect the parties’ rights under the Licenses and access to the Property and shall not interfere, or permit any of your guests, invitees, or third parties under your control to interfere with such rights or access. You agree that either Installer or the System Owner may record a customary memorandum of license in the land records respecting the Licenses. You acknowledge that a memorandum of license may be recorded solely to give notice and does not create a lien or encumbrance on title.

14. Privacy and Confidentiality. Information developed by, or shared with, Installer or System Owner in accordance with this Program will be governed by System Owner’s Privacy Policy located on System Owner’s website: www.participate.energy. You agree your information may be shared with your utility provider, our respective service providers, business partners, and affiliates.

15. Independent Disputes. If there is a dispute between you and Installer arising as a result of the System installation or Installer’s workmanship obligations hereunder, such dispute shall be resolved independently from System Owner. System Owner is not, and will not be, responsible for any such actions or omissions of Installer.

16. Governing Law and Dispute Resolution.

(a) The laws of the state where your Property is located shall govern this Installation Agreement without giving effect to conflict of law or choice of law principles. However, the Federal Arbitration Act governs our agreement to arbitrate (see subsection (b) below), unless specifically prohibited by state law.

(b) Informal Dispute Resolution. The parties agree to first try to resolve informally, and in good faith, any dispute. If the parties do not reach an informal agreement to resolve the dispute within forty-five (45) days after the notice of dispute is received, either party may commence a formal proceeding as detailed below. All applicable statutes of limitation and defenses based upon the passage of time shall be tolled for the forty-five (45) days during which the parties try to informally resolve any dispute. If you claim deficiencies in the System’s Installation or performance, you must allow us to visually inspect the System and obtain or download pertinent performance data from the System.

- (c) Arbitration of Disputes. If the parties cannot resolve any such dispute informally and if either party requests, the other party agrees to arbitrate all disputes and claims arising out of or relating to this Installation Order, or any alleged or claimed oral or other agreement related to the System. If a party seeks to have a dispute settled by arbitration, that party must first send to the other party, by certified or registered mail, return receipt requested and postage prepaid, a written Notice of Intent to Arbitrate. Unless other state law procedures are available and elected, if the parties do not reach an agreement to resolve the dispute within forty-five (45) days after the Notice is received, either party may commence an arbitration proceeding with the American Arbitration Association ("AAA"). Installer will promptly reimburse you any arbitration filing fee and, except as provided in the next sentence, Installer will pay all AAA administration and arbitrator fees. If the arbitrator finds that either the substance of the claim raised by you or the relief sought by you is improper or not warranted, as measured by the standards set forth in Federal Rule of Civil Procedure 11(b), then Installer will pay these fees only if required by the AAA Rules. If the arbitrator grants relief to you that is equal to or greater than the value of what you requested in the arbitration, Installer will reimburse you for your reasonable attorneys' fees and expenses incurred for the arbitration.

TO THE EXTENT PERMITTED BY LAW, YOU AGREE THAT, BY ENTERING INTO THIS INSTALLATION ORDER, YOU AND INSTALLER ARE AGREEING TO HAVE DISPUTES DECIDED BY AN ARBITRATOR AND ARE WAIVING THE RIGHT TO A TRIAL IN COURT OR BY JURY. IN ADDITION, EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER PARTY ONLY IN ITS INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE PROCEEDING.

Further, the parties agree that the arbitrator may not consolidate proceedings for more than one person's claims, and may not otherwise preside over any form of a representative or class proceeding, and that if this specific provision is found unenforceable, then the entirety of this arbitration clause shall be null and void (except for the jury trial waiver provision in the first sentence of this paragraph, which shall continue in full force and effect).

Judgment on an arbitrator's award may be entered in any court having jurisdiction. All statutes of limitations that are applicable to any dispute shall apply to any arbitration between us. The arbitrator shall have the authority to award any legal or equitable remedy or relief that a court could order or grant. The arbitrator, however, is not authorized to change or alter the terms of this Installation Agreement or to make any award that would extend to any transaction other than your own.

THE ARBITRATOR'S DECISION WILL BE FINAL AND BINDING, EXCEPT TO THE EXTENT IT IS SUBJECT TO REVIEW IN ACCORDANCE WITH APPLICABLE LAW GOVERNING ARBITRATION AWARDS. OTHER RIGHTS THAT YOU OR INSTALLER WOULD HAVE IN COURT MAY ALSO NOT BE AVAILABLE IN ARBITRATION.

NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED

IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE BUSINESS AND PROFESSIONS CODE OR OTHER APPLICABLE LAWS. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY. WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION TO NEUTRAL ARBITRATION.

Agreed and accepted by:

Customer(s) Initials _____

- 17. Term and Termination.** This Installation Order shall continue in full force and effect until terminated by Installer with or without cause, effective upon written notice to you. Upon termination, those obligations which by their nature should survive shall continue. If you or the System Owner terminates the Customer Agreement prior to the Installation, this Installation Order will also terminate.
- 18. Notices.** You can find applicable notices, certain warnings required by law, and details of our insurance attached as **Attachments** and **Annexes** to this Installation Order. Please ensure that you read each of such Annexes.

SIGNATURE PAGE AND NOTICE TO CUSTOMERS

THIS CONTRACT CONTAINS A BINDING ARBITRATION PROVISION WHICH MAY BE ENFORCED BY THE PARTIES.

LIST OF DOCUMENTS ATTACHED AND INCORPORATED INTO THIS AGREEMENT

Attachment 1 – Program Scope of Work
Attachment 2 – Related Additional Products or Services
Attachment 3 – Installer Terms and Conditions
Attachment 4 – Notice of Cancellation Forms
Annex 1 – State Legal Notices

NOTICE TO OWNER: Do not sign this contract if blank. You are entitled to a copy of the contract at the time you sign. YOU, THE CUSTOMER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAY IF YOU ARE 65 OR OLDER) AFTER THE DATE OF THIS TRANSACTION. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT. You have the right to require us to have a performance and payment bond.

CUSTOMER(S) SIGNATURES:

Signature(s): _____

Name(s): _____

Date(s): _____

INSTALLER:

Signature: _____

Title: _____

Name: _____

Date: _____

Pey Shadzi

COO

Pey Shadzi

Salesperson Name:

Salesperson Lic. #:

ATTACHMENT 1
PROGRAM SCOPE OF WORK

Customer / Notice Information / Property / Installation Address:

System Owner Information:

Participate Holdings, LLC
2093 Philadelphia Pike #3125, Claymont, DE 19703
Email: notices@participate.energy

Installer Information:

Cosmic Solar & Roofing
943 Poinsettia Ave., Ste 401, Vista CA 92081
(760)749-1111
solarroof@cosmicsolar.com

System Description:

System:

Nameplate Capacity (kW): _____

Solar Modules (if any):

Module Quantity: _____ Module Wattage: _____

Module Manufacturer & Product (Item #): _____

Battery (if any):

Output Capacity (kW/kWh): _____ / _____

Battery Quantity: _____

Battery Manufacturer & Product (Item #): _____

Inverter(s): Inverter Specification: _____

Mounting / Racking: Racking Specification: _____

Adders / Upgrades:

Approximate Installation Start Date:

Subject to the delays of permitting authorities, delays of your utility, inclement weather, or other conditions outside our control, we anticipate that the installation of the System will commence on or before _____ days from the Effective Date.

Approximate Installation Completion Date:

Subject to the delays of permitting authorities, delays of your utility, inclement weather, or other conditions outside our control, we anticipate that the installation of the System will be completed on or before _____ days from the Effective Date.

Customer(s) Initials:		BY INITIALING, YOU ACKNOWLEDGE RECEIPT OF SCOPE OF WORK, AS OF THE EFFECTIVE DATE.
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ATTACHMENT 2

RELATED ADDITIONAL PRODUCTS AND SERVICES

All Related Additional Products and Services included are appended to this **Attachment 2** and shall provide all relevant descriptions, terms and conditions, price, and signature of System Owner, Installer and Customer confirming the acceptance and inclusion of such Related Additional Products and Services that shall be incorporated into this Installation Order.

ATTACHMENT 3

INSTALLER TERMS AND CONDITIONS

The following additional terms apply to the installation of the System at the Property. If there is a conflict between this Attachment 3 and the main body of the Installation Order, the Installation Order controls.

ATTACHMENT 4
NOTICE OF CANCELLATION

Date of Installation Order: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN 3 BUSINESS DAYS (OR 5 BUSINESS DAYS IF YOU ARE 65 OR OLDER) FROM THE ABOVE DATE.

IF YOU CANCEL, ANY PROPERTY TRADED IN, ANY PAYMENTS MADE BY YOU UNDER THE CONTRACT OR SALE, AND ANY NEGOTIABLE INSTRUMENT EXECUTED BY YOU WILL BE RETURNED WITHIN TEN BUSINESS DAYS FOLLOWING RECEIPT BY THE SELLER OF YOUR CANCELLATION NOTICE, AND ANY SECURITY INTEREST ARISING OUT OF THE TRANSACTION WILL BE CANCELED.

IF YOU CANCEL, YOU MUST MAKE AVAILABLE TO THE SELLER AT YOUR RESIDENCE, IN SUBSTANTIALLY AS GOOD CONDITION AS WHEN RECEIVED, ANY GOODS DELIVERED TO YOU UNDER THIS CONTRACT OR SALE, OR YOU MAY, IF YOU WISH, COMPLY WITH THE INSTRUCTIONS OF THE SELLER REGARDING THE RETURN SHIPMENT OF THE GOODS AT THE SELLER'S EXPENSE AND RISK.

IF YOU DO MAKE THE GOODS AVAILABLE TO THE SELLER AND THE SELLER DOES NOT PICK THEM UP WITHIN TWENTY DAYS OF THE DATE OF CANCELLATION, YOU MAY RETAIN OR DISPOSE OF THE GOODS WITHOUT ANY FURTHER OBLIGATION. IF YOU FAIL TO MAKE THE GOODS AVAILABLE TO THE SELLER, OR IF YOU AGREE TO RETURN THE GOODS TO THE SELLER AND FAIL TO DO SO, THEN YOU REMAIN LIABLE FOR PERFORMANCE OF ALL OBLIGATIONS UNDER THE CONTRACT.

**TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, OR SEND A TELEGRAM TO _____ AT _____,
ATTENTION: COMPLIANCE NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAYS IF YOU ARE 65 OR OLDER) FOLLOWING THE TRANSACTION DATE OF _____.**

I hereby cancel this transaction on: _____ (Date)

Customer (print): _____

Signature: _____

Address: _____

Customer(s) Initials:		BY INITIALING, YOU ACKNOWLEDGE RECEIPT OF THIS NOTICE OF CANCELLATION, AS OF THE EFFECTIVE DATE.
----------------------------------	--	---

NOTICE OF CANCELLATION
(Duplicate Copy for Customer)

Date of Installation Order: _____

YOU MAY CANCEL THIS TRANSACTION, WITHOUT ANY PENALTY OR OBLIGATION, WITHIN 3 BUSINESS DAYS (OR 5 BUSINESS DAYS IF YOU ARE 65 OR OLDER) FROM THE ABOVE DATE.

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TO CANCEL THIS TRANSACTION, MAIL OR DELIVER A SIGNED AND DATED COPY OF THIS CANCELLATION NOTICE, OR ANY OTHER WRITTEN NOTICE, OR SEND A TELEGRAM TO _____ AT _____, ATTENTION: COMPLIANCE NOT LATER THAN MIDNIGHT OF THE THIRD BUSINESS DAY (OR FIFTH BUSINESS DAYS IF YOU ARE 65 OR OLDER) FOLLOWING THE TRANSACTION DATE OF _____.

I hereby cancel this transaction on: _____ (Date)

Customer (print): _____
Signature: _____
Address: _____

ANNEX 1
CALIFORNIA LEGAL NOTICES

“THREE-DAY,” OR “FIVE-DAY” FOR PEOPLE 65 YEARS OR OLDER, RIGHT TO CANCEL NOTICE
Statutorily Required Language

You, the buyer, have the right to cancel this contract within three business days, or five business days if you are 65 years or older. You may cancel by e-mailing, mailing, faxing, or delivering a written notice to the contractor at the contractor's place of business by midnight of the third or fifth business day, as applicable, after you received a signed and dated copy of the contract that includes this notice. Include your name, your address, and the date you received the signed copy of the contract and this notice.

If you cancel, the contractor must return to you anything you paid within 10 days of receiving the notice of cancellation. For your part, you must make available to the contractor at your residence, in substantially as good condition as you received them, goods delivered to you under this contract or sale. Or, you may, if you wish, comply with the contractor's instructions on how to return the goods at the contractor's expense and risk. If you do make the goods available to the contractor and the contractor does not pick them up within 20 days of the date of your notice of cancellation, you may keep them without any further obligation. If you fail to make the goods available to the contractor, or if you agree to return the goods to the contractor and fail to do so, then you remain liable for performance of all obligations under the contract.

Commercial General Liability Insurance (CGL):

- ☐ This Contractor does not carry commercial general liability insurance.
- ☒ This Contractor carries commercial general liability insurance written by Pauma Valley Insurance. You may call Pauma Valley Insurance at (760)749-2383 to check the contractor's insurance coverage.
- ☐ This Contractor is self-insured.
- ☐ This contractor is a limited liability company that carries liability insurance or maintains other security as required by law. You may call (the insurance company or trust company or bank) at _____ to check on the contractor's insurance coverage or security.

Workers' Compensation Insurance:

- ☐ This contractor has no employees and is exempt from workers' compensation requirements.
- ☒ This contractor carries workers' compensation insurance for all employees.

NOTICE TO CUSTOMER

You may not require a contractor to perform extra or change-order work without providing written authorization prior to the commencement of work covered by the new change order. Extra work or a change order is not enforceable against you unless the change order also identifies all of the following in writing prior to the commencement of work covered by the new change order: (i) the scope of work encompassed by the order, (ii) the amount to be added or subtracted from the contract, and (iii) the effect the order will make in the progress payments or the completion date. Contractor's failure to comply with the requirements of this paragraph does

not preclude the recovery of compensation for work performed based upon legal or equitable remedies designed to prevent unjust enrichment.

Notice of Use of Subcontractors:

At our sole discretion, we may use subcontractors to perform or assist us in designing, permitting, and/or installing the System. Any subcontractor that is known to us at this time, and may perform work on your Project, is listed on the table below. If we use other subcontractors to install the System, we'll provide you with their names and license numbers upon request.

Subcontractor Name	Address	Telephone/Contact	License No(s)
☒ No subcontractors are known to us at the time of signing this Agreement. ☐ The following subcontractors are known to us at the time of signing this Agreement.			

Customer(s) Initials: _____

MECHANICS LIEN WARNING

Anyone who helps improve your property, but who is not paid, may record what is called a mechanics lien on your property. A mechanics lien is a claim, like a mortgage or home equity loan, made against your property and recorded with the county recorder.

Even if you pay your contractor in full, unpaid subcontractors, suppliers, and laborers who helped to improve your property may record mechanics liens and sue you in court to foreclose the lien. If a court finds the lien is valid, you could be forced to pay twice or have a court officer sell your home to pay the lien. Liens can also affect your credit.

To preserve their right to record a lien, each subcontractor and material supplier must provide you with a document called a 'Preliminary Notice.' This notice is not a lien. The purpose of the notice is to let you know that the person who sends you the notice has the right to record a lien on your property if they are not paid.

BE CAREFUL. The Preliminary Notice can be sent up to 20 days after the subcontractor starts work or the supplier provides material. This can be a big problem if you pay your contractor before you have received the Preliminary Notices.

You will not get Preliminary Notices from your prime contractor or from laborers who work on your project. The law assumes that you already know they are improving your property.

PROTECT YOURSELF FROM LIENS. You can protect yourself from liens by getting a list from your contractor of all the subcontractors and material suppliers that work on your project. Find out from your contractor when these subcontractors started work and when these suppliers delivered goods or materials. Then wait 20 days, paying attention to the Preliminary Notices you receive.

PAY WITH JOINT CHECKS. One way to protect yourself is to pay with a joint check. When your contractor tells you it is time to pay for the work of a subcontractor or supplier who has provided you with a Preliminary Notice, write a joint check payable to both the contractor and the subcontractor or material supplier.

For other ways to prevent liens, visit CSLB's internet website at www.cslb.ca.gov or call CSLB at 800-321-CSLB (2752).

REMEMBER, IF YOU DO NOTHING, YOU RISK HAVING A LIEN PLACED ON YOUR HOME. This can mean that you may have to pay twice, or face the forced sale of your home to pay what you owe."

Information about the Contractors State License Board (CSLB):

CSLB is the state consumer protection agency that licenses and regulates construction contractors.

Contact CSLB for information about the licensed contractor you are considering, including information about disclosable complaints, disciplinary actions, and civil judgments that are reported to CSLB.

Use only licensed contractors. If you file a complaint against a licensed contractor within the legal deadline (usually four years), CSLB has authority to investigate the complaint. If you use an unlicensed contractor, CSLB may not be able to help you resolve your complaint. Your only remedy may be in civil court, and you may be liable for damages arising out of any injuries to the unlicensed contractor or the unlicensed contractor's employees.

For more information:

Visit CSLB's internet website at www.cslb.ca.gov

Call CSLB at 800-321-CSLB (2752)

Write CSLB at P.O. Box 26000, Sacramento, CA 95826

EFFECT ON TOTAL PAYMENT AND DEAL STRUCTURE

This Annex confirms that the contract price for the installation services performed under the Installation Order remains **\$0.00**. The Customer's obligation to pay the Net Amount Due is governed exclusively by the separate Customer Agreement, in which the payment represents a lease obligation to the System Owner, and not a payment for the construction services performed by the Installer. Under your Customer Agreement, Customer agreed to make payments to Installer as System Owner's agent for collection. There is no separate or additional amount customer will pay Installer to install the System.

Customer(s) Initials:		BY INITIALING, YOU ACKNOWLEDGE RECEIPT OF THESE STATE DISCLOSURES, AS OF THE TRANSACTION DATE.
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